

OAK SHIELD SERVICE LLC

Drug-Free Workplace Policy

Document ID:	OSS-HR-POL-001
Effective Date:	_____
Revision:	1.0
Approved By:	Xinchao Xi, President
Policy Owner:	_____ (Policy Administrator)

1. PURPOSE

Oak Shield Service LLC ("Oak Shield" or "the Company") is committed to providing a safe, healthy, and productive workplace for all employees, subcontractors, visitors, and the public affected by our operations. The use, possession, distribution, manufacture, or sale of illegal drugs, controlled substances, or alcohol on Company or client premises, in Company vehicles, or during work hours creates an unacceptable risk to safety, quality, and Company reputation.

This Policy establishes the Company's program to maintain a drug-free workplace consistent with applicable federal, Texas, and local law, and with the requirements of our clients, general contractors, and project owners.

2. SCOPE

This Policy applies to:

- (a) All Oak Shield Service LLC employees, regardless of position or length of service;
- (b) All applicants for employment with the Company;
- (c) All temporary, seasonal, and contract workers performing work on behalf of the Company;
- (d) All subcontractors and their personnel while on Oak Shield project sites (through flow-down contract language); and
- (e) All Company-owned, leased, or rented vehicles and equipment.

3. PROHIBITED CONDUCT

The following conduct is strictly prohibited and constitutes a violation of this Policy:

3.1 The unlawful manufacture, distribution, dispensation, possession, sale, purchase, transfer, or use of illegal drugs, controlled substances, drug paraphernalia, or alcohol on Company premises, client premises, project sites, or in Company vehicles.

3.2 Reporting to work, or remaining at work, while under the influence of illegal drugs, controlled substances, alcohol, or any prescription or over-the-counter medication that impairs the

employee's ability to perform job duties safely.

3.3 Refusing to submit to a drug or alcohol test required under this Policy.

3.4 Adulterating, substituting, or tampering with any specimen provided for testing.

3.5 Failing to notify the Company within five (5) calendar days of any criminal drug statute conviction for a violation occurring in the workplace.

3.6 Off-duty use of illegal drugs or controlled substances which results in impairment on the job, a positive test result, or which adversely affects job performance, safety, or the reputation of the Company.

Lawful use of prescription medication is permitted, provided the employee is using the medication as prescribed and the medication does not impair the employee's ability to perform the job safely. Employees taking prescription medication that may affect safety or performance must notify their supervisor before the start of the work shift.

4. TESTING PROGRAM

All testing under this Policy shall be performed by a qualified SAMHSA-certified laboratory using a chain-of-custody process, with results reviewed by a qualified Medical Review Officer (MRO). The standard testing panel shall include, at minimum: marijuana (THC), cocaine, opiates, amphetamines, and phencyclidine (PCP), with alcohol testing where applicable.

4.1 Pre-Employment Testing

All applicants who have received a conditional offer of employment shall be required to pass a drug test prior to starting work. An applicant who tests positive, refuses to test, or attempts to tamper with the specimen shall have the conditional offer withdrawn.

4.2 Random Testing

Employees in safety-sensitive positions — including, but not limited to, electricians, HVAC technicians, refrigeration technicians, equipment operators, drivers, field supervisors, and any employee performing work at heights, on energized electrical systems, or on client project sites — shall be subject to unannounced random drug testing throughout the calendar year. Selection shall be made using a scientifically valid, neutral random selection method administered by an independent third-party administrator.

4.3 Reasonable-Suspicion Testing

An employee shall be required to submit to drug and/or alcohol testing when the Company has reasonable suspicion, based on specific, contemporaneous, articulable observations concerning the appearance, behavior, speech, or body odors of the employee, that the employee is under the influence of drugs or alcohol. Reasonable-suspicion determinations shall be made by a trained supervisor and documented in writing.

4.4 Post-Incident / Post-Accident Testing

Any employee involved in a workplace accident, injury, near-miss, or property damage event shall be required to submit to drug and alcohol testing as soon as practicable, and in any event within thirty-two (32) hours of the event, where the employee's conduct could have contributed to the incident.

4.5 Return-to-Duty and Follow-Up Testing

An employee returning to work following a positive test result or completion of a substance abuse rehabilitation program (where return to work is offered at the Company's sole discretion) must pass a return-to-duty test and shall be subject to follow-up testing for a period of up to sixty (60) months.

5. CONSEQUENCES OF VIOLATION

Any violation of this Policy will result in disciplinary action, up to and including immediate termination of employment. Specifically:

- (a) A confirmed positive drug or alcohol test result;
- (b) Refusal to submit to required testing;
- (c) Tampering with or adulterating a specimen; or
- (d) Possession, sale, or distribution of illegal substances on Company or project premises

shall result in immediate termination, subject to applicable law.

Applicants who fail or refuse a pre-employment test will have their conditional offer of employment withdrawn and shall not be eligible for re-application for a period of twelve (12) months.

6. EMPLOYEE ASSISTANCE

Oak Shield encourages employees who recognize a substance abuse problem to seek confidential assistance voluntarily, before any violation of this Policy occurs. Employees may contact the Policy Administrator for information regarding available community resources, including SAMHSA's National Helpline (1-800-662-HELP). Voluntary self-referral made prior to any incident, request for testing, or notice of disciplinary action will not, in itself, result in disciplinary action; however, completion of an appropriate treatment program may be required as a condition of continued employment.

7. CONFIDENTIALITY

All information, interviews, reports, statements, memoranda, and test results received by the Company through its drug-testing program are confidential communications and shall not be released except (a) to the tested employee upon request, (b) to Company personnel on a strict need-to-know basis, (c) as required by law, court order, or governmental agency, or (d) as required by a prequalification platform or contractual obligation, with employee identifying information redacted where permitted.

8. NOTIFICATION OF CRIMINAL CONVICTION

Consistent with the Drug-Free Workplace Act of 1988 (41 U.S.C. § 8101 et seq.), any employee who is convicted of any criminal drug statute violation occurring in the workplace must notify the Company in writing within five (5) calendar days of such conviction. The Company will, in turn, notify any federal contracting agency within ten (10) calendar days where required.

9. SEARCHES

The Company reserves the right to conduct reasonable searches of Company premises, lockers, desks, vehicles, equipment, and personal property brought onto Company or project premises, where

the Company has reasonable suspicion of a Policy violation.

10. SUBCONTRACTORS AND VISITORS

All subcontractors performing work on Oak Shield project sites shall maintain a drug-free workplace program substantially equivalent to this Policy, and shall require their personnel to comply with all client and project-site substance abuse requirements. Subcontractor non-compliance may result in immediate removal from the project site and termination of the subcontract.

11. POLICY ADMINISTRATION

The Policy Administrator is responsible for:

- (a) Communicating this Policy to all employees and new hires;
- (b) Conducting supervisor reasonable-suspicion training;
- (c) Maintaining all required records, including testing logs and signed Acknowledgment Forms, for a period of not less than five (5) years;
- (d) Coordinating with the third-party administrator and SAMHSA-certified laboratory; and
- (e) Reviewing this Policy at least annually for compliance with applicable law and client requirements.

12. COMPLIANCE WITH APPLICABLE LAW

This Policy is intended to comply with all applicable federal, Texas, and local law, including but not limited to the Drug-Free Workplace Act of 1988, the Americans with Disabilities Act, and the Texas Workforce Commission's voluntary drug-free workplace guidelines. In the event of any conflict between this Policy and applicable law, applicable law shall control.

This Policy does not create an employment contract or alter the at-will employment relationship between Oak Shield Service LLC and its employees.

13. APPROVAL

Xinchao Xi, President

Oak Shield Service LLC

Date

ATTACHMENT A

Drug-Free Workplace Policy — Employee Acknowledgment Form

I, the undersigned, acknowledge that:

1. I have received, read, and understand Oak Shield Service LLC's Drug-Free Workplace Policy (OSS-HR-POL-001).
2. I understand that I may be required to submit to drug and/or alcohol testing as a condition of employment, including pre-employment, random, reasonable-suspicion, post-incident, and return-to-duty testing.
3. I understand that a confirmed positive test result, refusal to test, or tampering with a specimen will result in immediate termination of employment.
4. I understand that I am required to notify the Company within five (5) calendar days of any criminal drug statute conviction for a violation occurring in the workplace.
5. I have had the opportunity to ask questions about this Policy, and any questions I had have been answered to my satisfaction.

Employee Printed Name

Employee Signature

Date

Supervisor / HR Signature

Date

ATTACHMENT B

Reasonable-Suspicion Observation Checklist

Employee Name: _____

Date / Time of Observation: _____

Location: _____

Project / Job #: _____

Observed Behaviors (check all that apply):

- ☐ Slurred speech / incoherent speech
- ☐ Bloodshot, glassy, or watery eyes
- ☐ Dilated or constricted pupils
- ☐ Smell of alcohol or marijuana on breath / clothing / person
- ☐ Unsteady gait, swaying, stumbling
- ☐ Difficulty maintaining balance
- ☐ Tremors / shaking hands
- ☐ Drowsiness, inability to stay awake
- ☐ Excessive sweating / chills
- ☐ Unusual or erratic behavior
- ☐ Aggressiveness, agitation, or hostility
- ☐ Confusion or disorientation
- ☐ Inability to follow instructions
- ☐ Sleeping on the job
- ☐ Drug paraphernalia observed
- ☐ Other: _____

Narrative (specific facts, in supervisor's own words):

Action Taken:

- Employee removed from safety-sensitive duty
- Employee transported to testing facility (not driving self)
- Test ordered at: _____

Observing Supervisor Signature

Date / Time

Confirming Supervisor / President

Date / Time